

The Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985

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State of Bihar - Act

The Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985

BIHAR

India

The Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985

Rule THE-BIHAR-NARCOTIC-DRUGS-AND-PSYCHOTROPIC-SUBSTANCES-RULES-1985 of 1985

Published on 2 November 1985

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The Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985

Published vide Notification No. S.O. 1128, Bihar Gazette Extra-ordinary No. 626, dated 2nd November, 1985

S.O. 1128, dated 2nd November, 1985. - In exercise of the powers conferred by Sections 10, 65 and 71 read with Section 78 of the Narcotic Drugs and Psychotropic Substances Act, 1985 (Act 61 of 1985), the Governor of Bihar is pleased to make the following Rules, namely-

1.

Short title.

- These Rules may be called the Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985.

2.

Extent and commencement.

- They shall extend to whole of the State of Bihar and shall come into force from the [14th November, 1985.]

[Substituted by S.O. 430 dated 31st March, 1986.]

3.

Definitions.

(1)

In these Rules, unless there is anything repugnant in the subject or context,-

(a)

"Act" means the Narcotic Drugs and Psychotropic Substances Act, 1985;

(b)

"Approved Medical Authority" means a person who holds the post of a Civil Surgeon or a District Superintendent or Deputy Superintendent of a Hospital or a Medical Officer incharge of a Government Hospital or Dispensary or a Dispensary maintained by a Local Body.

(c)

"Approved practitioner" means a person-

(i)

holding a qualification granted by an authority specified or notified under Section 3 of the Indian Medical Degrees Act, 1916 (7 of 1916) or specified in the Schedules to the Indian Medical Council Act, 1956 (102 of 1956), or

(ii)

registered or eligible for registration in a medical register of a State meant for the registration of persons practising the modern scientific system of medicine excluding the Homoeopathic System of Medicine or

(iii)

registered in medical register other than a register for the registration of Homeopathic practitioner, or a State, who although not falling within sub-clause (i) or sub-clause (ii) is declared by a general or special order made by the State Government in this behalf as a person practising the modern scientific system of medicine for the purposes of this Act and is approved by the Collector for the purposes of these Rules; or

(iv)

registered or eligible for registration in the register of dentists for a State under the Dentists Act, 1948 (16 of 1948); or

(v)

who is engaged in the practice of veterinary medicine and who possesses qualifications approved by the State Government;

(vi)

any other person engaged in medical, dental or veterinary practice and approved by the Commissioner of Excise for the purpose of these Rules or of corresponding Rules for the time being in force in any part of India.

(d)

'Board of Revenue' means the Board of Revenue for Bihar constituted under the Bihar and Orissa Board of Revenue Act, 1913;

(e)

"Chemical Examiner" means the Chemical Examiner to the State Government and includes such other officer whom the State Government or the Central Government may at any time appoint as Chemical Examiner;

(f)

"Collector" means the chief officer incharge of the Revenue administration of a district and includes an officer of the Department of Excise and Prohibition not below the rank of a Superintendent of Excise and any officer empowered by the Government by name or in virtue of his office, to perform all or any of the functions of a Collector under these Rules;

(g)

"Commissioner of Excise," means the Head of the Department of Excise and Prohibition, Bihar.

(h)

'Excise Officer' means the Commissioner of Excise or a Collector or an officer of the Department of Excise and Prohibition, Bihar not below the rank of an Assistant Sub-Inspector of Excise and includes any person empowered by the Government to exercise all or any of the powers of an Excise Officer under these Rules;

(i)

"Form" means a form prescribed under these Rules;

(j)

"Licence" means a licence granted under these Rules or any Rules framed by the Central Government under the Act.

(k)

"Licensed Authority" means the Collector of the District; or any other officer authorised by Government or any authority prescribed by the Central Government under the Act, as the case may be;

(l)

"Licensed Chemist" means a person who has obtained a licence under these Rules for the sale on prescription of narcotic drugs and for the manufacture of narcotic drugs from materials which he is law full entitled to possess.

(m)

"Licensed Dealer" means a person who has obtained a licence under these Rules for the sale of narcotic drugs and psychotropic substances otherwise than on prescription and for manufacture of narcotic drugs from materials which he is lawfully entitled to possess;

(n)

"pass" means a pass granted under these Rules;

(o)

"permit" means a permit granted under these Rules;

(p)

"Prescription" means a prescription given by an approved practitioner for the supply of any narcotic drugs to a patient;

(q)

"State" means unless the context is otherwise, the State of Bihar and State Government" (or Government) means, unless the context is otherwise the Government of the State of Bihar.

(r)

"Transmission" means, unless the context is otherwise,

(i)

to import inter State into Bihar,

(ii)

to export inter State out of Bihar; and

(iii)

to transport within Bihar.

(s)

"Warehouse" means any place or premises licensed or established by the Commissioner of Excise and "Warehouse Officer" means any Excise Officer incharge of such Warehouse:

(2)

Words and expressions used but not defined in these Rules shall have the meaning respectively assigned to them in the Narcotic Drugs and Psychotropic Substances Act, 1985 (Act 61 of 1985).

4.

Manufacture.

- A licensed dealer or chemist may, subject to the conditions of his licence manufacture narcotic drugs which he may lawfully possess under these Rules subject to Section 9 of the Act and Rules made thereunder.

5.

Possession.

- Any person may possess such quantity of narcotic drugs as has been at one time dispensed and sold to him for his own use in accordance with the provisions of Rule 21 or of corresponding Rules for the time being in force in any part of India outside Bihar subject of the Rules framed under Section 9 of the Act.

6.

An approved practitioner may possess narcotic drugs for use in his practice but not for sale:

Provided that-

(a)

he shall keep an accurate record of his dealings in such practice;

(b)

such record shall be made available for inspection to an excise officer of and above the rank of Sub-Inspector.

7.

An approved practitioner incharge of a hospital or dispensary authorised in this behalf by the Collector by an order made under Rule 23 may possess narcotic drugs for use in the hospital or dispensary such in manner as may be specified in such order.

8.

A licensed dealer or licensed chemist may possess in his licensed premises such quantity of narcotic drugs as may be specified in his licence.

9.

A person to whom a pass has been granted under these Rules for the transmission of narcotic drugs may possess such quantity of such drugs as may be specified in the pass.

10.

Transmission.

- Any person may transport or import inter-State narcotic drugs which he may lawfully possess under Rule 5.

11.

An approved practitioner not incharge of a hospital or dispensary may, subject to Rules 6, 17 and 18 import inter-State any narcotic drugs under a pass obtained from the Collector or the Superintendent of excise.

12.

An approved practitioner incharge of a hospital or dispensary authorised in this behalf by the Collector by an order under Rule 25 may, subject to Rules 17 and 18, import inter State or transport within Bihar narcotic drugs for use in the hospital or dispensary on an indent countersigned.

(i)

The Civil Surgeon of the district in which the hospital or dispensary is located, or

(ii)

The Chief Medical Officer of the Railway Administration concerned if the hospital or dispensary is maintained by any Railway, or

(iii)

The Chief Medical Officer of Health to the Jharia Mines Board of Health if the Hospital or dispensary is attached to a colliery within the Jharia Mining settlement, or

(iv)

The Director or Deputy Director of the Civil Veterinary Department or the officer of Department incharge of range if the person is importing inter-State or transporting, is incharge of a veterinary hospital.

13.

A licensed chemist or licensed dealer may subject to Rules 17 and 18 transmit narcotic drugs for bona fide medical purposes under a pass obtained from the Collector:

Provided that such a pass shall not be granted for the transmission of any such drug in a quantity exceeding the quantity of such drug which such chemist or dealer may possess in his licensed premises in accordance with his licence.

14.

Nothing in these Rules shall be deemed to permit the import of inter State of any narcotic drug unless the Rules, for the time being inforce relating to the export inter-State of such drugs in the State or Union Territory from which the drugs are brought and the Rules regulating transmission in any other State or Union Territory through which the drugs pass have been complied with.

15.

A pass for export inter State can be issued only on production of a permit from the officer authorised by the Rules in force in the place of destination to issue permit for the import inter-State of narcotic drugs.

16.

A person may convey or cause to be conveyed narcotic drugs through Bihar in transit between any two parts of India other than Bihar provided that-

(1)

He has obtained a pass covering the consignment from the officer authorised by the Rules inforce in the place of destination to issue passes for the import of narcotic drugs;

(2)

He sends the consignment in packages securely packed and sealed and does not open any such package during transit

except on requisition from the Collector of the district or under order under Section 92 of the Code of Criminal Procedure, 1973;

(3)

If the consignment is conveyed through any district or districts in Bihar otherwise than as luggage with guard by rail or by insured post he gives intimation thereof to the Collector of each such district before the consignment enters that district.

17.

A person may transmit or cause to be transmitted narcotic drugs by post provided that-

(1)

he has obtained permit-

(a)

if the drugs are to be sent to any district in Bihar from the Collector or Superintendent of Excise of that district,

(b)

in all other cases from the proper authorities in the State or Union Territory to which the drugs are to be sent;

(2)

he uses only the parcel post and has the parcel insured;

(3)

He furnishes with the parcel a declaration stating the names of the consignor and consignee, the numbers and dates of licences held by them, the contents of the parcel in detail, the number and date of the permit covering the transmission, and such other particulars as may be prescribed from time to time by the Excise Commissioner.

(4)

He shows distinctly in his account books the name of the consignee and the quantity of drugs sent to him by post.

18.

(1)

Every person transmitting narcotic drugs shall comply with such general or special direction as may be specified in any pass under which the transmission may be effected.

(2)

Every such pass shall be in Form No.4.

19.

Sale.

- The Collector may grant to any person a licence for the sale of-

(a)

all or any narcotic drugs, or

(b)

any narcotic drug declared to be as such from time to time subject to the Rules framed under Section 9 of the Act.

20.

(1)

A licensed dealer may subject to the conditions of his licence sell otherwise than on prescription-

(a)

to a licensed dealer or to licensed chemist.

(b)

to an approved practitioner for use in his practice.

(c)

to an approved practitioner in charge of a hospital or dispensary for use in the hospital or dispensary.

(d)

to any person authorised to purchase the drugs sold by the Rules in force in any part of India other than Bihar, any narcotic drugs in a quantity not exceeding the quantity which the purchaser may lawfully possess.

(2)

Every licensed dealer shall maintain a written record in Form ND 3 of the sale of any such drug and shall plainly mark-

(a)

every package or bottle containing narcotic drugs with the amount of the drugs in such package or bottle;

(b)

every package or bottle containing any extract, preparation or admixture of any of the aforementioned drugs-

(i)

In the case of a powder, solution or ointment with the total amount thereof in the package or bottle and the percentage of the drug in the powder, solution or ointment.

(ii)

In the case of the tablets or similar articles other than those mentioned in sub-clause (i) containing any of the aforementioned drugs with quantity of the drug or the substance contained in such tablets or article and number of such tablets of articles in the package or bottle.

21.

(1)

A licensed chemist may sell narcotic drugs on prescription subject to the following conditions-

(a)

(i)

The prescription shall be in writing and shall be dated and signed by the approved practitioner giving it with his full name and address of the person for whose use (or for the use of whose animal) the prescription is given and the total amount of drug to be supplied.

(ii)

In the case of a prescription given by a dentist the prescription shall be for dental treatment only and shall bear the words "for local dental treatment only".

(iii)

In the case of a prescription given by a veterinary practitioner the prescription shall be for treatment of animals only and shall bear the words "for treatment of animals only."

(b)

A licensed chemist shall not dispense a prescription unless he is acquainted with the signature of the approved practitioner by whom it purports to have been given or is acquainted with the person or the family of the person for whose use or for the use of whose animal the prescription purports to be given and has no reason to suppose that the prescription is not genuine.

(c)

A licensed chemist shall date and sign prescription at the time when he serves it.

(d)

A licensed chemist shall not serve narcotic drugs more than once on the same prescription unless it bears superscription by the approved practitioner who prescribed it stating that it is to be repeated and the intervals of time after which and the number of times (not exceeding thrice) that it is to be repeated. In the absence of such superscription, the prescription shall be retained by the licensed chemist after it has been served once.

If the practitioner bears of superscription as aforesaid it is to be retained by the licensed chemist only after it has been served for such times as decided or the number of times fewer than that as mentioned in the prescription and in the same time the person serving it shall sign the prescription on every occasion that he serves it and note the date of every such occasion:

Provided that such a prescription prescribed by an approved practitioner for his own use shall not in any case be dispensed more than once.

(e)

A licensed chemist shall not serve any prescription presented for repetition before the interval specified in the superscription has elapsed since the prescription was last dispensed.

(f)

A licensed chemist shall keep every prescription on the premises where he dispensed it and shall produce it for inspection by an Excise Officer not below the rank of a Sub-Inspector of Excise.

(2)

A licensed chemist shall maintain a written report in Form ND 3 of every sale made by him under this Rule.

22.

Approval,authorisation of licences and passes.

(1)

The Commissioner of Excise may for purposes of sub-clause (vi) of clause (c) of Rule 3 approve any person engaged in medical dental or veterinary practice.

(b)

The Collector may approve any person possessed of the qualifications specified in sub-clause (iii) of clause (c) of Rule 3.

23.

The Collector may with the sanction of the Commissioner of Excise by general or special order in Form ND 5 authorize any approved practitioner in charge of a hospital or dispensary to possess, import inter-State into Bihar and transport within Bihar narcotic drugs in such manner as may be specified in such order.

24.

(1)

The Collector may grant to any person a dealer's licence in Form ND 1 permitting him to sell narcotic drugs otherwise than on prescription.

(2)

The Collector may grant to any person a Chemist's licence in Form ND 2 permitting him to sell narcotic drugs which he is lawfully entitled to possess.

(3)

A fee of rupees fifty shall be charged for the grant of any licence under sub-rules (1) and (2).

25.

(1)

Subject to any directions that the Commissioner may give in this behalf the officer who has granted a licence to or has by order approved or authorised any person under these Rules, may cancel or suspend such licence or order-

(i)

If such person has-

(a)

failed to pay any duty or fee payable by him, or

(b)

by himself or by any servant or person acting on his behalf committed any breach of the conditions of such licence or order or of these Rules, or

(c)

been convicted on any offence under the Act, or under the law for the time being in force relating to excise revenue or of any criminal offence: or

(ii)

if it is a condition of such licence or order that it may be cancelled or suspended at the will of such officer; or

(ii)

if it is condition of such licence or order that it may be cancelled or suspended at the will of such officer: or

(iii)

in any other case not falling either under clause (i) or clause (ii) after giving to such person fifteen days notice; and shall cancel such licence or order within fifteen days of the receipt of a notice, from such person that he desires to surrender the same.

(2)

When such licence or order is cancelled or suspended such person shall forthwith make over to the Collector all narcotic drugs then in his possession.

26.

Disposal of Drugs and confiscated articles.

- The Collector shall cause all narcotic drugs made over to him on cancellation or suspension of licence or order, to be examined by the Chemical Examiner or by such other officer as the Commissioner may direct. If any such drugs are certified by such officer to be fit for use the Collector may sell them to any dealer or chemist licensed under these Rules or under any corresponding Rules for the time being in force in any other part of India or to any person authorised by an order under Rule or any corresponding Rules in force as aforesaid. The sale proceeds of such drugs shall be paid to the person whose licence has been cancelled or suspended. The Collector may require any licenced dealer or chemist to

purchase at such price as the Collector may direct any quantity of such drugs not exceeding such quantity as the Collector may determine to be ordinarily saleable by him in two months. If any such drugs are certified by the Officer aforesaid to be unfit for use the Collector shall cause them to be destroyed.

Note. - All Narcotic drugs and all other articles confiscated under the Act in connection with any offence relating to these Rules shall be disposed of in accordance with the Rules framed by the Central Government.

27.

Issue of subsidiary orders.

- Subject to the provision of the Act and of these Rules, the Commissioner of Excise may from time to time give such directions as it may think fit for the purpose of carrying out the provisions of these Rules.

28.

Appeal and Revision.

(1)

An appeal shall lie to the Commissioner of Excise from an order of a Collector under these Rules, if presented to the Commissioner of Excise or to the Collector for transmission to the Commissioner of Excise within thirty days from the date of the order:

Provided that every memorandum of appeal relating to cancellation, suspension or withdrawal of a licence for the retail sale of narcotic drugs shall be submitted within 15 days from the date of the order appealed against to the Commissioner of Excise through the Collector against whose order the appeal is made. Such petition of appeal shall invariably be forwarded by the Collector to the Commissioner of Excise within 10 days of its presentation with the original records of the case, if any, and with any observations the officer forwarding it may wish to make thereon. The period for the presentation of appeal shall be counted from the date of the original orders and not from the date of rejection of any subsequent petition for Revision.

(2)

The Board of Revenue may revise any orders passed by a Collector or the Commissioner of Excise:

Provided that the application for Revision is filed within three months from the date of the orders passed by a Collector or the Commissioner of Excise as the case may be.

(3)

A petition of appeal from or for Revision of any order shall not be entertained unless it is accompanied by the original order or authenticated copy thereof or the omission to produce such order or copy is explained to the satisfaction of the authority to whom the petition is made.

(4)

An appeal against the order of an Approved Medical Authority other than the Civil Surgeon and Senior Executive Medical Officer passed under sub-rules (1) and (2) of Rule 30 shall lie to the Civil Surgeon and Senior Executive Medical Officer of the district, and his order shall be final.

(5)

An appeal against the order of the Civil Surgeon and Senior Executive Medical Officer of the district under Rule 32 will lie to the Collector of the district whose order shall be final.

29.

Possession and Oral Consumption of Opium.

- No person shall possess opium for oral consumption except on a permit granted by an approved medical authority under Rule 30.

30.

(1)

Any person desiring to possess opium for personal oral consumption shall have to present himself before an approved medical authority. He shall then be subjected to a course of treatment by such medical authority either as an indoor or as an out door patient in a Hospital maintained by the State or Local Body, with the least possible delay, with a view to cure him of the habit of opium eating. If during the course of treatment, the approved medical authority considers that it is necessary on medical grounds to allow such person consumption of opium orally, he shall issue necessary permit for the same in Form OP-I.

(2)

If the person addicted to opium is not radically cured of his habit during the course of treatment for the purpose and if

there is reason to believe that such person can not be cured, the approved medical authority will issue a permit in favour of such person in Form OP-II.

(3)

The aggregate quantity of opium to be prescribed in Form OP-I or OP-II shall not exceed twenty five grams a month and the quantity that can be possessed at any one time by the permit holder shall not exceed five grams and such issue will not be made more than once in a week on the appointed day and at the appointed time from the warehouse to which the permit is attached.

(4)

If any holder of permit in Form OP-I or OP-II is invalid or infirm and not physically fit to go to the warehouse for purchasing his quota of opium, the approved medical authority may make an endorsement to the effect on the body of the permit and also give the name and particulars of the agent who will purchase the opium on his behalf.

(5)

The permit may be renewed after a period of every three months by the approved medical authority issuing the permit and in case such authority feels that an increase in the prescribed quota is necessary, the case shall be referred to the Civil Surgeon and Senior Executive Medical Officer of the district and the quota may be increased with the approval of the latter.

(6)

The approved medical authority shall forward a list of permits issued in Form No. OP-I and OP-II alongwith the names and particulars of Agents referred to in sub-paragraph (4) above, to the Superintendent of Excise of the district in Form No. OP-III.

31.

Warehouse.

(1)

Warehouses for the sale of opium for oral consumption shall be established as such places as the Commissioner of Excise may, from time to time direct. The opium for oral consumption required for sale at a warehouse may be obtained from a Government Treasury.

(2)

The Warehouse Officer on receipt of permit in Form OP-I or OP-II will issue the prescribed quantity of opium to the permit holder on cash payment after making necessary entries to this effect in the permit. One copy of the permit left with the permit holder will be treated as a pass for transporting the prescribed quantity of opium. The Warehouse Officer shall maintain an account of stock and sale of opium for oral consumption in Form OP-I V. The Warehouse Officer shall also maintain an account in Form OP-V showing opium delivered on different dates to each holder of medical permit in Form OP-1 or OP-II.

(3)

Opium for oral consumption shall not be sold at any place except at a warehouse established under Rule 3 i.

32.

If any permit holder violates any of the conditions of the permit, the Superintendent of Excise of the area concerned may after obtaining written report from the Medical Authority which granted the permit and such further enquiry as may be necessary submit a report to the Civil Surgeon and Senior Executive Medical Officer of the district recommending cancellation, suspension or withdrawal of the permit. The Civil Surgeon and Senior Executive Medical Officer after due consideration of the facts reported and after such further enquiry, as may be necessary, may cancel the permit or suspend or withdraw it for a specific period. Any such order of cancellation, suspension or withdrawal shall be communicated to the Superintendent of Excise as well as the Warehouse Officer and also to the permit-holder either personally or by registered post and the permit holder shall, on receipt of such communication, surrender the permit forthwith to the Superintendent of Excise or the Sub-Inspector of Excise having jurisdiction over the area.

33.

Acquisition of opium for oral consumption or narcotic drugs and psychotropic substances.

(1)

Subject to the Rules framed or any direction issued by the Central Government under Section 9 of the Act or any other provisions thereof, opium for oral consumption, narcotic drugs and psychotropic substances may be required by the State Government on its own account in such manner as it may deem fit and necessary.

(2)

The issue and manner of issue of such opium, narcotic drugs and psychotropic substances shall be determined by the State Government from time to time and published in the Official Gazette, to the Rules or directions of the Central Government as mentioned in sub-rule (1).

34.

De-addiction.

(1)

The Government may from time to time, by notification in the Official Gazette, establish as many centres as it thinks fit for identification, treatment, education, after-care, rehabilitation, social re-integration of addicts.

(2)

Such Centres will be placed in overall charge of the Civil Surgeon of the district in which they may be situated.

(3)

The Civil Surgeon of the district shall be assisted by such of his subordinate staff as may be necessary for maintenance, management and superintendence of such centres.

(4)

Persons identified by the Civil Surgeon as addicts may be registered as such and may be admitted to any of the centres on such fees and on such terms and conditions as may be decided by the Director of Health Services, Bihar in this behalf considering the state of addiction, in consultation with the Excise Commissioner and with the approval of the Department of Finance, Bihar.

(5)

The Civil Surgeon of the district, in consultation with the Director of Health Services, Bihar may decide, from time to time the number of staff of different categories both medical and non medical in each centre depending on the number of addicts registered for treatment, education, after care, rehabilitation and social reintegration, as the case may be.

(6)

The staff mentioned in the preceding sub-rule (5) may till such time as may be prescribed by the Government be drafted from the existing staff of Government Hospital for running the centres and their conditions of service including their appointment training, powers and duties may be laid down by the Government keeping in view their special responsibilities in such centres.

35.

Rewards.

- The Board of Revenue in consultation with the Finance Department Bihar, may fix and prescribe, from time to time, by notification in the Official Gazette, the scales of rewards admissible and the manner of their payment to the various categories of Officers, informers and other persons in connection with offences against these Rules, out of the proceeds of fine and confiscations under the Act subject to the Rules framed by the Central Government in this regard.

36.

Miscellaneous.

- The Board of Revenue may issue subsidiary instructions for the appointment, training, powers and duties of persons employed in the centre and for the supply of opium for oral consumption, narcotic drugs and psychotropic substances from the centres.

37.

Repeal and Saving.

(1)

All Rules framed by the State Government under the Opium Act, 1878 and the Dangerous Drugs Act, 1930 are hereby repealed.

(2)

Notwithstanding such repeal, anything, done any action taken, any warehouse established/licensed, any license, pass or permit granted in exercise of the powers conferred by or under the rules referred to in sub-section (1) shall be deemed to have been done/taken, established/licensed and granted under these Rules, so far as they are not inconsistent with any of the provisions of the Act or the Rules framed thereunder by the Central Government.

(3)

The licenses, permits and Forms already granted or in use on the date on which these Rules come into force will

continue to be in force till such time, [not later than 30th June, 1986]

[Substituted by S. O. 430 dated 31st March, 1986.]

as they are not substituted by relevant licenses, passes, permits and Forms under these Rules.

Form O.P.I.

[See Rule 30 (1)]

Permit No.....

Date of issue....

Permit for the possession of Opium for oral consumption in the State of Bihar during the treatment for De-addiction.

1. Permit holder's name.....

2. Father's/Husband's name.....

3. Religion or Caste.....

4. Apparent age.....

5. Address in full....

6. Occupation.....

7. Name and address of the approved Medical Practitioner issuing the permit.

8. Quantity recommended.

9. Personal identification marks of the permit-holder as verified by the Approved Medical Practitioner.

10. Name of agent, if in the opinion of the approval Medical Authority issuing this permit, the holder is an invalid or infirm person.

This permit is granted under and subject to the provisions of the Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985 and others made thereunder and also subject to the conditions printed hereinafter.

Signature of Approved Medical Hospital/Authority Dispensary.

Registered No.

District.....

Conditions

1. This permit shall remain in Force from to (Both days inclusive).

2. The permit-holder shall not possess at any one time more than five grams of opium.

3. No opium other than opium obtained under this permit shall be transported, possessed or consumed by the permit-holder.

Granted this day of.....19

Signature or thumb-impression of the permit-holder.

Signature & designation of the Approved Medical Authority.

N.B.- This permit will be issued in triplicate. One copy will be retained by the Approved Medical Authority issuing the permit, the other by the permit-holder and the third by the W. Officer issuing opium.....

Form O.P. II.

[See Rule 30 (2)]

Permit No.....

Date.....

Permit for possession of opium for oral consumption in the State of Bihar in case the treatment for De-addiction fails.

1. Permit holder's name.....

2. Father's/Husband's name.....

3. Religion or Caste.....

4. Apparent age.....

5. Address in full.....

6. Occupation.....

7. Name and address of the Approved Medical Practitioner issuing the permit.

8. Quantity recommended per month (Not exceeding twenty five grams in all).....

9. Personal identification marks of the permit-holders as verified by the Approved Medical Practitioner.

10. Name of agent, if in the opinion of Approved Medical Authority, issuing this permit the holder is an invalid or infirm person.

This permit is granted under and subject to the provisions of the Bihar Narcotic Drugs and Psychotropic Substances

The Bihar Narcotic Drugs and Psychotropic Substances Rules, 1985

Rules, 1985 and other made thereunder Subject to the conditions printed hereinafter.

Signature of Approved Medical Authority,

Hospital/Dispensary.

Registered No.

Distt...

Conditions

1. This permit shall remain in force from to (Both days inclusive).
2. The permit-holder shall not possess at any one time more than five grams of opium.
3. No opium other than opium obtained under this permit shall be transported, possessed or consumed by the permit-holder.
4. The permit shall be non-transferable and may be cancelled, suspended or withdrawn by the Approved Medical Authority issuing the permit, if he thinks it necessary.

Granted this day of 19

Signature or left hand thumb-impression of the permit holder.

Signature & designation of Approved Medical Authority issuing the permit.

N.B.:—This permit will be issued in triplicate. One copy will be retained by the approved Medical Authority issuing the permit, the other by the permit holder himself and the third by the Warehouse Officer issuing opium.

Form O. P. III

(See Rule 30 (5))

List of permits issued in Form O.P.I. and Form O.P. II to be forwarded by Approved Medical Authority to the District Assistant Commissioner of Excise, Superintendent.

(List for the Week ending Saturday).

To,

The Assistant Commissioner/Supdt. of Excise,

Sir,

The following permits in forms O.P. I and O.P. II have been issued to opium eaters during the week ending.....

Yours faithfully

Medical Officer,

Hospital/Dispensary.

Sl. No.

Date of Issue

Name of permit

Age

Father's/ Husband's name and full address

From I & II in which permit recommended

(O.P. Monthly quota of opium recommended

Name of agent in case of invalid & infirm

person

Remarks

1

2

3

4

5

6

7

8

9

Form O. P. IV

See Rule 31 (2)

Opium Warehouse

Date

Opening balance

Receipt

Total of column 2 & 3

Quantity eaters

Sold to closing

Remarks balance

1

2

3

4

5

6

7

Form O.P.V

(See Rule 31 (2))

Year..

Account of opium supplied to individual permit-holders on different dates.

1. Name of permit holders.....

2. Age.....

3. Father's or Husband's name.....

4. Full address.....

5. Number and date of permit.....

6. In what form (O.P.I. or O.P. II)..

7. Quantity of opium allowed monthly.....

8. Name of agent in case of invalid or infirm persons.

9. Name and address of Approved Medical Authority issuing the permit.....

Quantities of opium supplied on different dates.

Date

Quantity Grams

Signature of permit-holder or agent.

1

2

3

Appendix

Form N. D.I

Licence granted to a dealer the manufacture, possession and sale otherwise than on prescription of narcotic drugs specified herein, (Subject to Section 9 of the Narcotic Drugs and Psychotropic Substances Act, 1985 and the Rules made thereunder).

(See Rules 4 & 24)

Number of licence;

Name and description of the person licensed.

Residence of the person licensed.

Rate of business of the person licensed.

The person described above is authorised by the Collector of to manufacture, possess and sell otherwise than on prescription Narcotic Drugs as specified herein from the date of this licence to the 31st day of March 19.....

Subject to the following condition:

specifications

1.

2.

3. (list to be enclosed in case of several items)

Conditions

1. The licensee shall be bound by the provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985 and the Rules made by the Government of India Under Section 9 of the Act & the Rules made by the Government of Bihar under Section 10 of the Act and any additional, general or special Rules which may be made from time to time.

2. This licence extends-

(a)

to the manufacture of Narcotic Drugs which the licensee is lawfully entitled to possess subject to the Rules framed by the Government of India under Section 9 of the Act.

(b)

to the possession and the sale otherwise than on prescription of Narcotic Drugs.

3. The licensee shall not have in his possession at any one time the Narcotic Drugs, as specified, more than the quantity mentioned against each;

He shall obtain his supplies of drugs from a licensed dealer in the State of Bihar or from a dealer licensed under the corresponding rules for the time being in force in any other part of India or by manufacture from drugs which he is lawfully entitled to possess subject to the provisions of Condition 2 of this license. The licensee shall not receive or have in his possession of drugs otherwise obtained. In the case of imports Inter-State of Narcotic drugs from any part of India outside the State of Bihar, the licensee shall first apply to the Collector stating the name and address of the firm from which he wishes to purchase the drugs, the description of the drugs with their bulk weight and drug contents and obtain in import inter-State authorization before he intends for the drugs. If the Collector is satisfied that the drugs are required solely for medicinal purposes and that the licensee is authorised to possess the quantity of the drugs required he will grant an import inter-State authorization.

4. The transmission of dangerous medical drugs by inland post by the licensee for medicinal purposes is permitted subject to the following Conditions:-

(1)

Only the parcel post shall be used;

(2)

the parcels shall be insured;

(3)

The parcels shall be covered by permits which, shall, in the case of transmission to a district within the State of Bihar be issued by the Collector of the district and in other cases by the proper authorities in the State or Union Territory to which the parcels are addressed;

(4)

the parcels shall be accompanied by a declaration stating the names of the consignee and the consignor, the contents of the parcels in details, the number and the date of the permit covering the transmission and the number of license held by the consignee; and

(5)

the consignee shall show distinctly in his account books the name of the consignor and the quantity of drugs sent to him from time to time by post.

5. The licensee shall not manufacture, possess, or sell drugs as specified by virtue of this licence, at any place except his place of business specified above.

6. The licensee shall mark every package or bottle containing drugs as specified with the percentage or proportion or amount of opium, Cannabis Indica, Morphine, Diacetyl-morphine or Cocaine or any other substance that may be mentioned in the Narcotic Drugs and Psychotropic Substances Act, 1985, contained in the drugs.

7. The licensee may sell otherwise than on prescription drugs as specified.

1. (a) to a licensed dealer or to a licensed chemist.

(b)

to an approved practitioner for use in his practice.

(c)

to an approved practitioner in-charge of a Hospital or Dispensary for use in the hospital or dispensary.

(d)

to any person authorised to purchase the drugs sold by the Rules in force in any part of India other than Bihar, any

drugs as specified in a quantity not exceeding the quantity which the purchaser may lawfully possess:

Provided that the drugs shall not be delivered to any person not licensed or otherwise authorized to be in possession of the drugs who purports to be sent by or on behalf of a person so licensed or authorized, unless on a authority in writing, signed by the person so licensed or authorized to receive the drugs on his behalf is produced and unless the licensed dealer is satisfied that the authority is genuine.

2. He shall maintain a written record in Form ND 3 of the sale of any such drug and shall plainly mark-

(a)

every package, or bottle containing narcotic drugs with the amount of the drugs in such package or bottle.

(b)

every package or bottle containing any extract, preparation or admixture of any of the aforementioned drugs-

(i)

In the case of a powder solution or ointment with the total amount thereof in the package or bottle and the percentage of the drug in the powder, solution or ointment;

(ii)

in the case of the tablets or similar articles other than those mentioned in sub-clause (i) containing any of the aforementioned drugs with quantity of the drug or the substance contained in the package or bottle.

B. The licensee shall not be a party to the transport of any Narcotic drugs from one licensed dealer's shop to another or to any licensed chemist's shop in the State of Bihar unless it is covered by a permit granted by the Collector of the district to which the transport is made or by the licensed dealer from whose shop the drugs are transported.

C. The licensee shall, on requisition by the Collector or any other officer duly authorized by him, deliver up his licence for amendment or for the issue of fresh licence.

D. The licensee shall maintain true accounts of all transaction in Form N. D. showing, in respect of each receipt, the source of supply and the quantities received and in respect of each issue. The quantity issued and the name and address of the person to whom it is issued the accounts shall show separately the quantity of opium used in the manufacture of medicinal opium and the quantity of morphine, diacetyl morphine, or cocaine used in the manufacture of preparations containing morphine, diacetyl morphine or cocaine etc. Such accounts shall be preserved for not less than two years from date of the last entry in the accounts.

10. The licensee shall furnish periodically to the Excise or Revenue offices such statistics as they may require from time to time.

11. The licensee shall file, in support of his accounts of receipts, the Customs receipts for duty paid, or the invoice or supply obtained otherwise than import by sea, and in support of his accounts of issues; a receipt from each person to whom any issue is made or the order on which such issue is made, Accounts of transactions under this licence shall be kept separate from those maintained by him under any other licence. At the end of the each month total should be struck showing separately the issues to (a) licensees including approved practitioners who hold licenses and (b) approved practitioners licenses and others authorised to possess Narcotics drugs.

12. Stocks of (drugs as specified) and all accounts and records of transactions under this licence shall be open to inspection by an officer of the Excise Department not below the rank of Sub-Inspector.

13. An inspection note book with pages numbered consecutively shall be maintained for the use of inspecting officers and shall be handed over to the District Excise Officer or to any Officer authorized by him to receive it on a receipt being given therefor. The book shall be preserved in good condition and handed over to the Excise Sub-Inspector at the end of the period for which the licence is in force.

14.

(1)

Subject to any direction that the Commissioner may give in this behalf the Officer who has granted a licence to or has by order approved or authorised any person under these Rules may cancel or suspend such licence or order.

(i)

if such person has-

(a)

failed to pay any duty or fee payable by him, or

(b)

by himself or by any servant or person acting on this behalf committed any breach of the conditions if such licence on

order of these Rules or servant or person committed any breach of these Rules, or

(c)

been convicted of any offence under the Act, or under the law for the time being in force, to excise revenue, or of any Criminal Offence, or

(iii)

in any other case not falling under clause (i) or clause (ii) after giving to such person fifteen days notice, and shall cancel such license or order within fifteen days of the receipt of a notice, form such person that he deserves to surrender the same.

(2)

When such licence or order is cancelled or suspended such person shall forthwith make over to the Collector all narcotic drugs then in his possession.

15. The imposition of a penalty or the cancellation or suspension of the licence under the foregoing condition shall not operate as a bar to prosecution for any offence which may have been committed under the Narcotic Drugs & Psychotropic Substances Act, 1985.

16. If the licensee shall have in his possession on the expiry, cancellation or suspension of the license any raw opium or medicinal opium or any Narcotic drugs as the case may be, shall deliver them up to the Collector.

17. The licensee shall be bound to purchase in such quantity not exceeding that which he is likely to sell in two months, and at such rates as the Collector, may direct, any narcotic Drugs (drug as specified) that may be delivered up to the Collector by any other licensee whose licence has expired or has been cancelled or suspended.

18. All preparations containing not more than Order 2 per cent of morphine or of diacetyl morphine or 0.1 % of Cocain and any preparation which the Government of India may be notification in the Official Gazette made in pursuance of a finding under Article 8 of the Geneva Convention declare not be narcotic drug, may be imported, exported, transported, possessed and sold without restriction.

Date

day of 19.

District

Collector

Form N. D. 2

Licence granted to a Chemist for the manufacture possession and sale on prescriptions of Narcotics drugs specified herein. (Subject to Section 9 of the Narcotic Drugs & Psychotropic Substances Act, 1985 and the Rules made thereunder)

Number of licence:-

(See Rules 3 & 24)

Name and description of person licensed:-

His residence.....

His place of business.....

The person described above is hereby authorised by the Collector of to manufacture, possess and sell Narcotic Drugs as specified herein on prescription from the date of this license to the 31st day of March 19 Subject to the following conditions.

(Specifications)

1.

2.

3. (List to be enclosed in case of several items)

I. The licensee shall be bound by the provisions of the Narcotic Drugs and Psychotropic Substances Act 1985, and the Rules made by the Government of India Under Section 9 of the Act, the Rules made by the Government of Bihar under Section 10 of the Act and any additional general or special Rules which may be made from time to time.

II. This licence extends-

(1)

To the manufacture of medicinal opium or any preparation containing any manufactured drug from materials which the licensee is lawfully entitled to possess.

(2)

To the manufacture and possession of prepared opium from opium lawfully possessed by an addict registered with the State Government on medical advice for his personal consumption.

(3)

To the possession and sale on prescription of the Narcotic Drugs as specified in this licence.

III. The licensee shall not have in his possession at any one time the Narcotic drugs as specified more than the quantity mentioned against each:-*

He shall obtain his supplies of drugs from a licensed dealer in the State of Bihar or from a dealer licensed under the corresponding Rules for the time being in force in any other part of India or by manufacture from drugs which he is lawfully entitled to possess subject to the provisions of Condition II of this licence. The licensee shall not receive or have in his possession drugs otherwise obtained. In the case of Inter-State import of Narcotics drugs from any part of India outside the State of Bihar the licensee shall first apply to the Collector stating the name and address of the firm from which he wishes to purchase the drugs the description of the drugs with their bulk weight and drug contents and obtain an import inter-state authorization before he indents for the drugs. If the Collector is satisfied that the drugs are required solely for medicinal purposes and that licensee is authorised to possess the quantity of the drugs required he will grant an import Inter-State authorization.

(To be fixed by the Collector according to the requirements).

IV. The transmission of Narcotic drugs (as specified) by inland post by the licensee for medicinal purposes is permitted subject to the following conditions:-

1. Only the parcel post shall be used;
2. the parcels shall be insured;
3. the parcels shall be covered by permits which shall in the case of transmission to a district within the State of Bihar be issued by the Collector of that District and in other cases by the proper authorities in the State or Union Territory to which the parcels are addressed;
4. the parcels shall be accompanied by a declaration stating the names of the consignee and the consignor the content of the parcels in detail the number and date of the permit covering the transmission and the number of the license held by the consignee; and
5. the consignee shall show distinctly in his account books the name of the consignor and the quantity of drugs sent to him from time to time by post.

V. The licensee shall not manufacture, possess or sell drugs as specified by virtue of this licence, at any place except his place of business specified above.

VI. The licensee shall mark every package or bottle containing drugs as specified with the percentage or proportion or amount of opium, Cannabis Indica, morphine, diacetyl-morphine or cocaine or any other substance as may be mentioned in the Narcotic Drugs & Psychotropic Substances Act 1985, contained in the drugs.

VII. The licensee may sell only on prescription the Narcotic drugs as specified subject to the following conditions namely:-

(1)

he shall sell the drugs in such quantity and for use of such person only as may be specified in the prescription.

(2)

(a)

(i)

The prescription shall be in writing and shall be dated and signed by the approved practitioner giving it with his full name and address of the person for whose use (or for the use of whose animal) the prescription is given and the total amount of the drug to be supplied.

(ii)

in the case of a prescription given by a dentist the prescription shall be for dental treatment only and shall bear the words "for local dental treatment only";

(iii)

In the case of a prescription given by a veterinary practitioner the prescription shall be for treatment of animals only and shall bear the words "for treatment of animals only."

(b)

He shall not dispense a prescription unless he is acquainted with the signature of the approved practitioner by whom it

purports to have been given or is acquainted with the person or the family of the person for whose use or for the use of whose animal the prescription purports to be given and has no reason to suppose that the prescription is not genuine.

(c)

he shall date and sign prescription at the time when he serves it.

(d)

he shall not serve narcotic drugs more than once on the same prescription unless it bears a superscription by the approved practitioner who prescribed it stating that if it is to be repeated and the intervals of time after which and the number of times (not exceeding thrice) that it is to be repeated. In the absence of such superscription, the prescription shall be retained by the licensed chemist after it has been served once.

If the prescription bears a superscription as aforesaid it is to be retained by him only after it has been served for such time as decided or the number or times fewer than that as mentioned in the prescription and in the same time the person serving it shall sign the prescription on every occasion that he serves it and note the date of every such occasion:

Provided that such a prescription prescribed by an approved practitioner for his own use shall not in any case be dispensed more than once.

(e)

He shall not serve any prescription presented for repetition before the interval specified in the superscription has elapsed since the prescription was last dispensed.

(f)

He shall keep every prescription on the premises where he dispensed it and shall produce it for inspection by an Excise Officer not below the rank of a Sub-Inspector of Excise.

(3)

He shall maintain a written report in Form ND 3 of every sale made by him under this Rule.

VIII. The licensee shall maintain true accounts of all transactions in Form N.D. 3 showing in respect of each receipt the source of supply and the quantity received and in respect of each issue the quantity issued, the name and address of the person to whom it is issued and the name of the practitioner on whose prescription is issued. The account shall show separately the quantity of opium and in the manufacture of medicinal opium and the quantity of morphine, diacetyl morphine, or cocaine used in the manufacture of preparations containing morphine, diacetyl morphine or cocaine. Such accounts shall be preserved for not less than two years from date of the last entry in the accounts. Accounts of transactions under this licence shall be kept separate from those maintained by him under any other licence.

IX. The licensee shall, on requisition by the Collector or any other Officer duly authorized by him, deliver up his licence for amendment or for the issue of a fresh licence.

X. The licensee shall furnish periodically to the Excise and Revenue Officers such statistics as they may require from time to time.

XI. The licensee shall file, in support of his account of receipts, the customs receipts for the duty paid or the invoices of supplies obtained otherwise than import by sea, and, in support of his accounts of issue, copies of prescriptions on which such issues are made.

XII. The stocks of all Narcotic drugs as specified, and all accounts and records of transactions under this licence shall be open to inspection by an Officer of the Excise Deptt. not below the rank of Sub-Inspector.

XIII. An inspection note book with pages numbered consecutively shall be maintained for the use of inspecting officers and shall be handed over to the District Excise Officer or to any officer authorised by him to receive it on a receipt being given therefor. The book shall be preserved in good conditions and handed over to Excise Sub-Inspector at the end of the period for which licence is in force.

XIV. (1) Subject to any directions that the Commissioner of Excise may give in this behalf, the officer who has granted a licence to or has by order approved or authorised any person under these Rules, may cancel or suspend such licence or order:-

(i)

If such person has-

(a)

Failed to pay any duty or fee payable by him, or

(b)

by himself or by any servant or person acting on his behalf committed any breach of the conditions of such licence or

order or of these Rules, or

(c)

been convicted of any offence under the Act, or under the law for the time being in force relating, to excise revenue, or of any criminal offence, or

(ii)

if its condition of such licence or order that it may be cancelled or suspended at the will of such officer; or

(iii)

in any other case not falling either under clause (i) or clause (ii) after giving to such person fifteen days notice: and shall cancel such licence or order within fifteen days of the receipt of a notice, from such person that he desires to surrender the same.

(2)

When such licence or order is cancelled or suspended such person shall forthwith make over to the Collector all narcotic drugs then in his possession.

XV. The imposition of a penalty or the cancellation or suspension of the licence under the foregoing condition shall not operate as a bar to prosecution for any offence which may have been committed under the Narcotics and Psychotropic Substances Act, 1985.

XVI. If the licensee have in his possession on the expiry, cancellation or suspension of his licence, any raw opium, or medicinal opium or narcotic drugs as the case may be, he shall deliver them up to the Collector.

XVII. The licensee shall be bound to purchase in such quantity not exceeding that which he is likely to sell in two months, and at such rates as the Collector may direct, any raw opium or narcotic drugs that may be delivered up to the Collector by any other licensee whose license has expired or has been cancelled or suspended.

XVIII: All preparation containing not more than 0.2% of any preparation which the Central may by notification in the Official Gazettes, made in pursuance of a finding under Article 8 of the Geneva Convention declared not to be manufactured drug, may be transmitted, possessed and sold without restriction.

Date

day of 19.

the District,

Collector

Form N. D. 3

Forms of Accounts to be maintained by N.D. Land N.D. II Licensees

See Rule 21

Opium derivatives other than prepared opium

Month and Date

Particulars of transaction receipts issues total

balance etc.

Raw Opium

Medical Opium

Opium in the form of live-uses extracts and such

other preparation containing more than 2% of morphine made direct from morphine

Morphines pure morphine sale of morphine and such

preparation containing more than 0.2% of morphine are made direct from morphine

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

1

2

3
4
5
6
7
8
9
10
Stock on Kg.
Gr.ReceiptTotalIssueBalance
Kg. Gr.
Kg. Gr.
Kg.
Gr.
Kg.
Gr.
Opium deivtives other than prepared opium
Diacetyl-morphine (diamorphine herion) pure
diacetyl-morphine, salts of diacetyl-morphine and all
preparations containing diacetyl-morphine
Cocaine, pure cocaine salts of cocaine and such
preparations containing more than 1.1% of cocaine as are made
direct from Cocaine
Cocaine and such preparation containing more than
0.1% of cocaine as are made direct from coca leaf
Description
Bulk weight
Drug contents
Crude Cocaine
C C genine
Description
Bulk weight
Drug contents
Description
Bulk weight
Drug contents
11
12
13
14
15
16
17
18
19
20
21
Kg.
Gr.
Kg.
Gr.

Kg.

Gr.

Kg.

Gr.

Medical Hemp

Other narcotic substances declared to be
manufactured drugs

Extract of Hemp

Tincture of Hemp

Benzyl morphine and all other co of morphine and
their salts and preparation

Dihydro morphine (De/auidide) and its salts and
preparations

Dihydro codinone (dicodede) and its salts and
preparations.

Description

Bulk weight

Drug contents

Description

Bulk weight

Drug contents

Description

Quantity

Description

Quantity

Description

Quantity

22

23

24

25

26

27

28

29

30

31

32

33

Other narcotic substances declared to be
manufactured drugs

Dihydro and code/ none (Eucodal) its salts and
preparations

No. and date of customs receipts for duty paid in
case of imports by sea and invoice no. and date in case of supply
obtained otherwise

To whom sold, no, and name of license holder and
name and address in the case of others

Name of the practitioners on whose prescription
the issue is made

Quantity

Acedicone

34

35

36

37

38

Note.- Particulars of the quantity of opium used in the manufacture of medicinal opium and the quantity of morphine, diacetyl morphine or cocaine used in the manufacture of preparations containing morphine, diacetyl-morphine or cocaine should be shown separately against issues.

Transmission Pass 4

(See Rule

18)

Counterfoil.

Form of pass for the transmission

of the (here enter name of drug)...

(To be issued quadruplicate, hard

copy being kept as counterfoil in the Office of issue, another to

be returned to the consignor to the Deputy Commissioner Collector

of the district to which the consignment is sent after noting the

details of the drugs consigned in the form on the back of the

foil, the third to be sent to the authority of exporting

district, and the fourth to accompany the consignment).

Pass granted to (here enter name of

consignee)

?..

import from transport from or

via (enter localities and district

?..

into

From there state district) Narcotic

drugs Coca leaves (Other than prepared opium) to as

specified below.....

The amount of (here state

description and weight or quantity of each kind of drug) one

ounce equals to 437.5 grains avoirdupois)

This pass must be used within one month from the date of its issue. The duplicate shall be returned

by the consignor after the despatch of the consignment to the

Collector

Deputy Commissioner

Collector

(here enter district)

The bulk of the consignment shall

not be broken in transit.

Place

Date

Collector

(Here enter the kind of

drug allowed to be imported inter State exported inter State

transported e. g. (1) Coca do

and coca leaf, (2)

medicinal hemp, (3) medicinal opium or (4) morphine, diacetyl

morphine (official or non-official preparations) as the case may be. They should be entered on the licence and duplicate and triplicate copies thereof also,

Details of consignment

The drugs specified

below....

Have this day the 19 be

on despatched by (mode of conveyance) in.....

(State number and

description of packages)

Description of drugs,

quantity of Weight, Packages.

Place

(Signature of Consignor)

Transmission Pass 4

(See Rule

18)

Form of pass for the transmission

of the (here enter name of drug)...

To be returned by the consignor to

the Collector, Dy. Commissioner Collector of the district to

which the consignment is sent after noting details of the drugs

consigned in the form on the back of this foil)

Pass granted to (here enter name of

consignee)

inter state

import from export to inter state

or via transport from there enter locality and district)

?.

into (From here state distt.) to

Narcotic drugs coca leaf.

Other than prepared Opium) to be

specified below....

The amount of (here state

description and weight or quantity of each drug).

(one ounce equal 437.5 grains

avoirdupois)

This pass must be used within one month from the date of its issue. The duplicate shall be returned

by the consignor after the despatch of the consignment to the

Collector

Deputy

Commissioner Collector?.....(here

enter district)

The bulk of the consignment shall

not be broken in transit

Place.....

Date.....

Collector

From overleaf to be filled up

signed and dated by the consignor and this duplicate to be

returned to the

Collector

Deputy CommissionerCollector

.....NoDate the 19.....

Copy forwarded to the..... for
information

Place

Collector

Transmission Pass 4

(SeeRule

18)

Triplicate No.

Form of pass for the transmission
of the (here enter name of drug)...

(To be sent to the authority of the
exporting district)

Pass granted to (here enter name of
consignee) import inter State from export inter State or via

(here enter locality and distt) Transport from

FromIntoFromto...

Narcotic drugs coca leaf (other
than prepared opium) to the amount as specified below:-

of (here state description and)

weight or quantity of each kind.

(one Ounce equals) 437.5 grains

Avoirdupis)

This pass must be used withinonemonth from the date of its issue. The bulk of the consignment
shall not be broken in transit.

Place

Date

Collector

Advice of consignment of narcotic
drugs.

The drugs specified below have this
day the 19 (Mode of consignment.....incharge of in (State number
and description of Packages)

Description of
drugs....

Quantity ofWeightpackagesDate

Signature of Cons.)

forwarded to the Coll.

Transmission Pass 4

(SeeRule

18)

Form of Pass for the transmission
of (here enter name of drug)....

To accompany the consignment pass
granted to here enter name of consignee).

?..

Import inter State from export

inter State to or via (here enter export to

?.

into from (here state distt) to

Narcotic drugs Coca-leaf (other

than prepared opium to the amount as specified below:-

amount of....

(Here State description and weight

or quantity of each kind of drug) (one ounce equals 437.5 grains

avoirdupois)

This pass must be used within one month from the date of its issue. The duplicate shall be returned

by the consignor after despatch of the consignment to the

Collector

Deputy Commissioner/

Collector.

(here enter district)

The bulk of the consignment shall

not be broken in transit.

Place

Date

Collector

From overleaf to be filled up signed and dated by the
consignor before the consignment leaves his premises.

Form N. D. 5

(See Rule 23)

Order under Rule 23 of the Rules made by the Government of Bihar under Section 10 of the Narcotic Drugs and Psychotropic Substances Act, 1985, authorising an approved practitioner in managing or supervising charge of a Hospital or dispensary to possess-import inter-State into Bihar and transport Narcotic drugs.

District-

Number of authorisation in Register-

Name of approved practitioner-

Locality

resident of

An approved practitioner in managing or....supervising authorised to possess, import inter-State into Bihar and Transport narcotic drugs for use for medicinal purposes only in the said hospital/dispensary from the 21st March, 1989.

It is required of the holder of this order as a condition of its remaining in force that he duly and faithfully perform and abide by the following conditions-

I. That he do not transfer this order to any other person.

II. That he use narcotic drugs for medicinal purposes only and only in the premises for which this order is granted and that he do not use narcotic drugs in any other place without a separate order.

III. That he do not sell narcotic drugs to any one.

IV. That he do not obtain narcotic drugs from a licenced chemist on his own prescription, but that he obtain all narcotic drugs to be possessed under this order from a dealer licenced under the Rules made by the Government of Bihar under Section 10 of the Narcotic Drugs and Psychotropic Substances Act, 1985 or corresponding Rules for the time being in force in any part of India outside Bihar.

V. As approved practitioner in-charge of a hospital or dispensary authorised in this behalf by the Collector by an order under Rule 23, may subject to Rules 17 and 18, import inter-State or transport within Bihar narcotic drugs for use in the hospital or dispensary on an indent counter-signed by:-

(i)

The Civil Surgeon of the district in which the hospital or dispensary is located or

(ii)

The Chief Medical Officer of the Railway Administration concerned if the hospital or dispensary is maintained by any Railway, or

(iii)

The Chief Medical Officer or Health to the Jharia Mines Board of Health if the hospital or dispensary is attached to a Colliery within the Jharia Mines settlement or

(iv)

The Director or Dy. Director of the Civil Veterinary Deptt, or the Officer of the Department incharge of range if the person importing inter State or transporting is incharge of a Veterinary hospital.

(v)

The Chief Sanitary Officer to the Jharia Mines Board of Health shall be deemed to be the Civil Surgeon for issue in respect of a Charitable Hospital attached to a colliery in the Jharia Mining Settlement and holding an order of authorization in Form D. 5 for the use of a dangerous medical drugs for medicinal purpose only.

(vi)

That he do not store any narcotic drugs to be used, under this order in any premises other than those named herein.

(vii)

That he keep an account of all Narcotic drugs received and used by him and he at all times afford facility for the inspection of such account and of his stock of Narcotic drugs, by the Collector, the Civil Surgeon, the Supdt. of Excise, or any officer authorised by the Collector or the Civil Surgeon, to inspect the same.

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